

大法官講堂：
中華民國憲法及政府（一）

第二十四講
言論自由

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言論自由

湯德宗

憲法有聲書

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二、UK_WC §11 (freedom of expression)

11.1 Everyone has the right to *hold opinions* without interference.

11.2

.1 Everyone has the right to freedom of expression.

.2 This right includes freedom to *seek, receive and impart* information and ideas of all kinds regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of their choice.

11.3 The exercise of this right carries with it special duties and responsibilities. It may be subject to certain restrictions, but only such as are provided by law and are necessary in a democratic society--

.1 for respect of the rights or reputations of others; or

.2 for the protection of national security or of public order or of public health or morals.

11.4 A requirement by law that radio or television broadcasting, or cinema enterprises, must be licensed is not

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inconsistent with this Article. 

三、Checklist/ III. Fundamental Rights

I. Freedom of expression and communication

四、ICCPR §§ 19 & 20 (Freedom of expression) &

General Comment No. 10 (1983/06/29), No. 11

五、憲法 §11：「人民有言論、講學、著作及出版自由」

貳、言論自由的真諦 -- 為什麼保障言論自由？

一、民主價值說 (democratic values) /

民主程序促進說 (democratic process facilitation theory)

Self-government in a democratic society/ democratic
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二、追求真理說 (truth-seeking theory) /

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三、自我表現說 (self-expression theory) /

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四、促進寬容 (promoting tolerance) /

安全閥理論 (safety-valve theory)

五、兼容並蓄說

1. 釋字 509

「言論自由為人民之基本權利，憲法第十一條有明文保障，
國家應給予最大限度之維護，俾其實現自我、溝通意見、
追求真理及監督各種政治或社會活動之功能得以發揮」

2. 釋字 414

孫森焱大法官部分不同意見書

3. 釋字 364

「言論自由為民主憲政之基礎。廣播電視係人民表達思想與言論之重要媒體，可藉以反映公意強化民主，啟迪新知，促進文化、道德、經濟等各方面之發展，其以廣播及電視方式表達言論之自由，為憲法第十一條所保障之範圍」

參、美國經驗 -- 類型化的言論保障

US Amend. 1: "Congress shall make no law ... abridging the freedom of speech, or of the press..."

Q 適用主體僅限制「國會」(Congress)？

Ω 實際亦限制總統(行政)與法院(司法)；並經由 14th Amend. (涵攝 1st Amend.) 限制各州

Gitlow v. New York, 268 U.S. 652 (1925)

Q "No law"？

Ω 1st Amend. 從來不是絕對的保障

Q "of speech"？

Ω 1st Amend. 保護範圍亦及於「表意的行為」(expressive conduct)，或稱「象徵性言論」(symbolic speech)，例如焚燒國旗以示抗議

一、言論自由限制之分類

1. 事前審查 (censorship, prior restraint) = 預防制

1.1 定義

Alexander v. United States, 509 U.S. 544 (1993)

1.2 事前審查之為害

Nebraska Press Association v. Stuart, 427 U.S. 539(1976)

豈止「噤聲」(“chills”)，簡直「凍斃」(“freezes”)！

1.3 推定「違憲」→ 適用 高標 審查

1.3.1 例外

Near v. Minnesota, 283 U.S. 697 (1931)

國安；猥褻；煽惑暴力推翻政府等

1.3.2 政府應負責舉證（例外事由存在）

New York Times Co. v. United States, 403 U.S. 713

(1971, *Pentagon Papers* case)

1.3.3 須有相應之程序保障

- 陳述意見或言詞辯論之機會

Carroll v. President and Comm. of Princess Anne

County, 393 U.S. 175 (1968)

- 迅速獲得司法救濟之機會

National Socialist Party of America v. Village of

Skokie, 432 U.S. 43 (1977)

2. 事後處罰 (subsequent punishment) = 追懲制 (課以刑事、民事責任)

Q 應採如何審查基準？

二、雙軌理論 (two-track theory) 司法審查

1. 針對言論內容所為之管制 (content-based regulations)

Prof. Laurence Tribe: “**Track one**” analysis: regulations aimed at “communicative impact” (「傳播影響」) 例如：藥物廣告、冒犯性言論 (offensive speech)

→ 適用「嚴格審查基準」(strict scrutiny test)

政府應舉證：系爭言論自由之限制，乃為追求 (實現)

「優位的政府利益所必要，且為量身剪裁之手段」
(necessary and narrowly tailored means to achieve a
compelling state interest)，亦即「限制最少之手段」(the
least restrictive means to further the claimed governmental
interests)

2. 無關言論內容之管制 (content-neutral regulations) =
時間、地點、方式的管制 (time, place and manner restrictions)
Prof. Laurence Tribe : “**Track two**” analysis: regulations
aimed at “non-communicative impact” but might having
adverse effects on communicative opportunities。
例如禁止夜間在住宅區使用噪音型擴音器演說等

- 應適用「中度審查標準」(the intermediate scrutiny test)
政府應舉證：系爭言論自由限制與「追求（實現）重要
政府利益具有實質關連（substantially related to
significant/ substantial/ important governmental interests）
且尚有其他表意管道（leave open ample alternative
channels of communication）；或
- 應適用「合理審查標準」(the rational relationship test
or the rational basis test) 系爭言論自由限制乃為追求
（實現）「合法」之政府目的（公共利益）之「合理」手段
（rational means to legitimate governmental end）

- 三、雙層理論 (two-layer theory) = 雙階理論 (two-tier theory)
「按言論之內容而為管制」(content-based restrictions) 者，
更按系爭言論之價值，給予不同程度之保障

1. 高價值言論 = 完全保障之言論 (fully protected speech)

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例如：政治、學術、文學、藝術言論

Cf. 釋字 445, 509

2. 低價值言論 = 有限度保障（甚或不予保障）之言論

2.1 猥褻言論

2.1.1 猥褻（obscenity）≠ 色情（pornography）

2.1.2 *Miller v. California*, 413 U.S. 15 (1973) (the **Miller** test)

Obscenity is not protected by the 1st Amend. and thus can be regulated by the state. However, the state must conform to the three-part test:

- a) Whether the **average person**, applying **contemporary community standards**, would find that the work taken as a whole appeals to the prurient interest.
- b) Whether the work depicts, in a patently offensive way, sexual conduct.
- c) Whether the work taken a whole lacks serious literary, artistic, political or scientific value.

- 分工（分權）：

Issues of fact（事實問題）for the jury to determine:

Whether it appeals to prurient interest & patent offensiveness.

Matter of law（法律問題）to be determined by the court:

Whether it lacks serious literary, artistic, political or scientific value is to be found by **a reasonable person**, rather than an ordinary member of any

given community

2.1.3 例外

- To possess obscene material “in the privacy of his own home”
- Child Pornography (v. adult pornography)
New York v. Ferber, 458 U.S. 747 (1982)
State interest in protecting children allows laws prohibiting distribution of images of sexual performances by minors (<16) even where content does not meet tests of obscenity.

Cf. 釋字 623

2.2 商業言論 (commercial speech) = 廣告

2.2.1 定義：以促成商業交易為目的之言論

2.2.2 Four-prong **Central Hudson** test

Central Hudson Gas & Electric Corp. v. Public Service Commission of New York, 447 U.S. 557 (1980)

→ 「高中標」之濫觴

- 1) Whether the commercial speech at issue is protected by the First Amendment, i.e., if the regulated speech is **misleading** or concerns an **illegal activity** ?
- 2) Whether the asserted government interest in restricting the speech is **substantial** ?
If both inquiries yield positive answers, then
- 3) Does the regulation **directly advance** the government interest asserted ?
- 4) Is the restriction “**not more extensive than is**

necessary to serve that interest” ?

The fourth prong is satisfied if there is *a reasonable fit* between the legislature’s ends and the means chosen to accomplish those ends. (故而並非「限制最小手段」the least restrictive means)

2.2.3 高中標 與 高標 之差別

Cf. 釋字 414, 釋字 577

2.3 誹謗性言論 (defamation = libel & slander) 故意為關於他人之不實傳述，致他人名譽受損；

2.3.1 對「公眾人物」(public figure) 或「官員」(public officials) 之誹謗

- *New York Times v. Sullivan*, 376 U.S. 254 (1964) 原告須證明被告 (媒體) 對公眾人物之公務作為之不實報導係「確有惡意」(actual malice)，亦即「明知其為不實」，或「毫不在意所言是否真實」，而為報導者，始能獲判民事賠償。
- *Hustler Magazine v. Falwell*, 485 U.S. 46 (1988)

Public figures may not recover for the tort of intentional infliction of emotional distress without showing a false statement of fact which was made with “actual malice.” Parodies of public figures which could not reasonably be taken as true are protected against civil liability by the First Amendment, even if intended to cause emotional distress.

2.3.2 對「私人」(private figure) 之誹謗

原告須證明被告（如媒體）有「過失」，始得獲判賠償；但涉及公共事務之誹謗更須證明被告「確有惡意」（actual malice），始得請求「精神上損害賠償」（presumed damages）或「懲罰性損害賠償」（punitive damages）

2.4 挑釁言論（fighting words）不受保護

2.4.1 *Chaplinsky v. New Hampshire*, 315 U.S. 568 (1942)

1) The **insulting or fighting words**--

“Those which by their very utterance inflict injury or tend to incite an imminent breach of the peace”, and are “no essential part of any exposition of ideas, and of such slight social value as a step to truth”

2) Chaplinsky, a Jehovah’s Witness said to a listener,

“You are a God damned racketeer” and “a damned Fascist and the government of Rochester are Fascists or agents of Fascists.”

——> It’s likely to cause a violent response against the speaker, or it’s an insult likely to inflict immediate emotional harm.

2.4.2 冒犯性言論（offensive speech）尚不構成「挑釁言論」

Cohen v. California, 403 U.S. 15 (1971)

The offensiveness of a symbol (“Fuck the Draft” jacket) is not a basis for banning it and that people in public places have little or no claim to be considered captive audience.

J. Harlan: “No individual actually or likely to be present could reasonably regard the words on the appellant’s jacket as a direct personal insult.”

2.4.3 仇恨性言論 (hate speech)

僅當其不涉及「按內容而為之區分」(content-based distinctions)時，始構成得禁止之 “fighting words”

R.A.V. v. City of St. Paul, 505 U.S. 377 (1992)

- 1) City ordinance banned placing on public or private property a symbol, including a burning cross or Nazi swastika, if one knows or has reasonable grounds to know **arouses anger, alarm or resentment** in others on the basis of race, color, creed, religion or gender.
- 2) Majority opinion (J. Scalia)
A content-based distinction within a category of unprotected speech will have to meet **strict scrutiny**, subject to two exceptions.
 - a) If it directly advances the reason why the category of speech is unprotected;
 - b) If it is directed at remedying secondary effects of speech and is justified without referring to content.

The Ordinance in dispute was unconstitutional as it prohibited hate speech based on race, religion or gender, but not based upon political affiliation or sexual orientation.

Cf. ICCPR § 20 (Prohibition of propaganda for war

and inciting national, racial or religious hatred) &
General Comment No. 11 (1983/07/29)

2.5 煽惑違法之言論 (incitement of illegal activity)

2.5.1 Clear and Present Danger Doctrine

Schenk v. U.S., 249 U.S. 47 (1919)

Defendant's criticism of the draft was not protected by the First Amendment, because it created a clear and present danger to the enlistment and recruiting service of the U.S. armed forces during a state of war.

- 1) J. Holmes：任何人不得主張言論自由，而在擁擠的戲院謊稱失火
- 2) 惟合法的言者之自由，可能因違法的聽者而受到限制

2.5.2 Advocacy/ indictment distinction (倡議 ≠ 煽惑)

Brandenburg v. Ohio, 395 U.S. 444 (1969)

倡議暴力或犯罪之言論 advocacy of violence，僅當

- 1) the advocacy is **directed to** inciting or producing imminent lawless action; and
- 2) the advocacy is **likely to** incite or produce such action

時，方屬違憲，而得予禁止。

2.6 象徵性言論 (symbolic speech)

「言論」包含「表意行為」(expressive conduct)

例如，焚燒國旗（政治性）或跳脫衣舞（道德性）

2.6.1 *United States v. O'Brien*, 391 U.S. 367 (1968)

A criminal prohibition against burning draft cards did

not violate the 1st Amend., because its effect on speech was only incidental, and it was justified by the significant government interest in maintaining an efficient and effective military draft system.

Q 近似「中標」(intermediate scrutiny) ?

2.6.2 *Texas v. Johnson*, 491 U.S. 397 (1989)

A statute that criminalizes the desecration of the American flag violates the First Amendment.

- 1) 德州法律禁止 any person to “deface, damage or otherwise physically mistreat” a flag “in a way that the actor knows will seriously offend one or more persons likely to observe or discover his action”
- 2) Majority Opinion (J. Brennan)
 - 系爭州法之目的乃在禁止以國旗表達異議
 - If there is a bedrock principle underlying the First Amendment, it is that the Government may not prohibit the expression of an idea simply because society finds the idea itself offensive or disagreeable.

2.6.3 *U.S. v. Eichman*, 496 U.S. 310 (1990)

The Flag Protection Act of 1989 prohibited the knowing mutilation, defacement, burning, maintaining on the floor or ground, or trampling upon any flag of the United State.

● Majority Opinion (J. Brennan)

The new Act was not explicitly content-based, the government’s asserted interest was still clearly

related to the suppression of free expression and concerned with the content of the message.

- Prof. Steven Heyman

“The Court equated the ‘content’ of expression with its ‘communicative impact.’”

2.6.4 *West Virginia State Board of Education v. Barnett*,
319 U.S. 624 (1943)

- 1) 規定學童須向國旗敬禮之州法，違憲。
- 2) J. Jackson: ” If there is any fixed star in our constitutional constellation, it is that no official, high or petty, can prescribe what shall be orthodox in politics, nationalism, religion, or other matters of opinion or force citizens to confess by word or act their faith therein.”

2.6.5 *Barnes v. Glen Theater, Inc*, 501 U.S. 560 (1991)

- 1) 依據禁止公然裸體之（印第安那）州法，禁止女性全裸舞蹈，合憲
- 2) 複數意見（C. J. Rehnquist）：「非屬猥褻之娛樂性質之脫衣舞應屬意見，可享受有限度之言論自由」
→ 採「嚴格標準」審查，合憲
- 3) 協同意見（J. Scalia）：系爭州法乃針對「行為」（而非「言論」）之管制
→ 採「合理標準」審查，合憲
- 4) 協同意見（J. Souter）：系爭州法乃為促進「防止嫖妓、性侵害及有關犯罪」之政府利益，合憲
- 5) 不同意見（J. White）：禁止裸舞乃為壓抑言論。
且屬「以內容為標的」而限制言論之選擇性執法
——→ 採「嚴格標準」審查，認無優越之政府利益存

在，違憲。

四、新聞自由（Freedom of the Press）

1. 公平接近使用廣電媒體權

1.1 *Red Lion Broadcasting Co. v. Federal Communications Commission*, 395 U.S. 367 (1969)

- 法律規定廣電媒體應平衡報導公共議題。凡個人誠信或人格遭受攻擊時，受攻擊者應被告知，並應有答辯之機會（opportunity to reply）
- 系爭規定合憲，因為廣電頻率具有「稀少性」（scarcity rationale）

J. White: “in view of the **scarcity of broadcast frequencies**, the Government’s role in allocating those frequencies and the legitimate claims of those unable without governmental assistance to gain access to those frequencies for expression of their views, we hold the regulations constitutional.”

1.2 *Miami Herald Pub. Co. v. Tornillo*, 418 U.S. 241 (1974)

- 佛羅里達州法規定，公職候選人之人格或政績遭受報紙攻擊者，該報紙應於同樣顯著位置免費刊登其人之回應
- 系爭規定違憲，蓋「平面媒體」與「廣電媒體」性質不同

C. J. Burger: “Florida statute exacts a penalty on the basis of the content of a newspaper. The first phase of the penalty...is exacted in terms of the cost in printing and ...in taking up space that could be devoted to other

material the newspaper may have preferred to print...Faced with [such a penalty], editors might well conclude that the safe course is to avoid controversy.”

Cf. 釋字 364

2. 有線電視媒體之管制

Turner Broadcasting System, Inc. v. F.C.C., 512 U.S. 622 (1994)

- 聯邦有線電視法（The Federal Cable Act）規定有線電視公司均應播出地方無線廣播系統製作的節目。
- 有線電視與無線電視不同，應適用中度審查基準

J. Kennedy: “The rationale for applying a less rigorous standard of First Amendment scrutiny to broadcast regulation does not apply in the context of cable regulation. The justifications for our distinct approach to broadcast regulation rests on the *unique physical limitations of the broadcast medium*...The broadcast cases are inapposite in the present context because cable television does not suffer from the inherent limitations that characterize the broadcast medium.”

【學思策問】

Q 相對於其他國家，何以美國特別重視保障言論自由，並對言論自由提供最周延之保障？

Q 所謂「仇恨性言論」，應受憲法之保障？

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【進階閱讀】

李念祖，〈從釋字五〇九號解釋論「陳述不實」是否為「誹謗罪」之構成要件-- 兼論社會變遷中言論自由憲法解釋對刑法及其解釋之影響〉，輯於湯德宗主編，《憲法解釋之理論與實務》第四輯，頁 233～290（台北：中央研究院法律學研究所，2005 年 5 月）。

Michael J. Perry, *Freedom of Expression: An Essay on Theory and Doctrine*, 78 NW. U. L. REV. 1137 (1983).

【課後習作】

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313-314	11.1 Everyone has the right to hold opinions without interference. 11.2 .1 Everyone has the right to freedom of expression. .2 This right11.4 A requirement by law that radio or television broadcasting, or cinema enterprises, must be licensed is not inconsistent with this Article.		The Institute for Public Policy Research , 《 The Constitution of the United Kingdom 》 P52 (http://www.ippr.org/files/images/media/files/publication/2014/01/the-constitution-of-the-united-kingdom_1991-2014_1420.pdf?noredirect=1) 瀏覽日期：2016/10/6， 本作品依據著作權法第46、52、65 條合理使用。